

Rajasthan Press and Registration of Books Rules, 1951

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State of Rajasthan - Act

Rajasthan Press and Registration of Books Rules, 1951

RAJASTHAN

India

Rajasthan Press and Registration of Books Rules, 1951

Rule RAJASTHAN-PRESS-AND-REGISTRATION-OF-BOOKS-RULES-1951 of 1951

Published on 28 June 1951

Commenced on 28 June 1951

[This is the version of this document from 28 June 1951.]

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Rajasthan Press and Registration of Books Rules, 1951

Published vide Notification No. F.2(ii) 36/51, dated 28.6.1951 (Published in Rajasthan Gazette Part 4B, dated 7.7.1951).

1.

(a) Short title

- These rules may be called the Rajasthan Press and Registration of Books Rules, 1951.

(b)

Application and commencement - These rules will come into force immediately and will apply to the whole of [the State of Rajasthan]

[Substituted by Notification No. F.2 (10)HD/51, dated 4.3.1958 (Published in Rajasthan Gazette Part 4-A, dated 22.5.1958).]

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2.

Definition

- In these rules the expression 'the Act' means the Press and Registration of Books Act, 1867.

3.

Declaration by keeper of a press

- A keeper of a press making a declaration under Section 1 of the Act shall, if the place where such press is situate is a portion only of a building or enclosure or other premises, state in such declaration a true and precise description of that portion such as will, in the opinion of the Magistrate before whom such declaration is made, be sufficient to identify the same.

3A.

Declaration by printer or publisher of a newspaper

(1)

The printer and the publisher of every newspaper published in Rajasthan shall appear in person before the District Magistrate within whose local jurisdiction such newspaper shall be printed or published, or such printer or publisher resides, for making a declaration under Section 5 of the Act unless he shall prove to the satisfaction of such Magistrate concerned that he is unable so to appear by reason of any bodily infirmity or other sufficient cause, he shall, in such case, be permitted to appear by an agent authorised by him by a power of attorney duly executed in this behalf to carry out all the requirements of Section 5 of the Act.

(2)

The printer or publisher making such declaration shall, if the place where the printing or publication of such newspaper is conducted is only a portion of the building or enclosure or any other premises, state in such declaration a true and precise account of that portion such as will, in the opinion of the Magistrate before whom such declaration is made, be sufficient to identify the same.

3B.

Joint Declaration

- If two or more persons individually declare themselves to be the keeper of one and the same press or the printer and/or publisher of one and the same newspaper, the District Magistrate shall require each such declarant to describe himself as the Joint keeper of the press or the joint printer and/or publisher of the newspaper as the case may be.

4.

Delivery of copies of newspaper

- Two copies of every such newspaper as is published in Rajasthan, shall in accordance with the provisions of Section 11-A of the Act, be delivered by the printer, one to the Director of Public Relations for Rajasthan at his office in Jaipur and the other to the [Deputy Inspector General C.I.D. & I.B., Rajasthan]

[Substituted by Notification No. D.4244/P. 3(11) Home/D/57, dated 29.8.1959 (Published in Rajasthan Gazette, Part 4-C, dated 15.10.1959).]

to the District Magistrate of the Districts in which the Press is situated.

5.

[Delivery of book - (a) Every printer of a book shall in accordance with the provisions of clause (a) of Section 9 of the Act, deliver one copy of every book printed or lithographed in Rajasthan to the Director of Public Relations for Rajasthan at his office at Jaipur.

(b)

Every printer shall also deliver in accordance with the provisions of clause (b) of Section 9 of the Act, one copy of such book to the District Magistrate of the District in which the press is situated and one copy to the [Deputy Inspector General, C.I.D. and I.B., Rajasthan] at his office at Jaipur.]

A leaflet containing defamatory allegations is a pamphlet which is included in the term Book. The term 'literature' is not confined to religious or moral books. Narain Vs. State ILR 1958 Rajasthan 1104-1959 RLW 276-AIR 1958 Rajasthan 350.

6.

Form of receipt for books delivered

- The receipt referred to in Section 10 of the Act shall be in the following form :-

"I, A. B., do hereby acknowledge to have receipt form C.D. Printer/ lithographer, a copy of required under clause (a) /(b)

of Section 9 of the Press and Registration of Books Act, XXV of 1867.

Dated.....

Signature.....

7.

Quarterly return of books issued from a press

- Every keeper of a printing press shall, within ten days after the first day of January, the first day of April, the first day of July and the first day of October of each year, forward to the District Magistrate, return in the sub joined form of all books printed at his press in the quarter proceeding, the said dates, or if no books have been printed at his press, a statement to that effect:-

Quarterly return of Books and Pamphlets Issued from the Press

Full title of book (contents of title page)

Printer and place of publication

Date of issue from the press or the publication

8.

Catalogue of books

- The catalogue of books printed in Rajasthan referred to in Section 18 of the Act shall be kept by the Director of Public Relations for Rajasthan, He shall publish the memorandum of the books registered in such catalogue during each quarter in the Rajasthan Gazette and forward a copy thereof to the Secretary to the Government of Rajasthan in the Home Department for being sent to the Government of India.

8.

(A)

Books to be sent for deposit in the Public Library - All books received by the Director of Public Relations under clause (a) of Section 9 of the Act, shall after being used for the preparation of the catalogue referred to in Rule 8, be forwarded to the Maharaja's Public Library at Jaipur]

[Inserted by Notification No. F. 2(ii) 36/Pub/51, dated 24.6.1953 (Published in Rajasthan Gazette, Part 4-B, dated 27.6.1953).]

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Provided that books which are required to be brought to the notice of the State Government shall be forwarded to the Secretary to the Government of Rajasthan in the Home Department.

8.

(B)

Books to be transmitted to the Central Government

- Every District Magistrate and the Assistant Inspector General of Police shall forward all books received by them under clause (b) of Section 9 of the Act, to the Secretary to the Government of Rajasthan in the Home Department for being transmitted to the Government of India,

9.

When by a notification issued by Government under Section 21 of the Act, any book forfeited under Section 99A of the Criminal Procedure, 1898 [.....]

[Deleted by Notification No. F. 2(10) HD/57, dated 4.3.1958 (Published in Rajasthan Gazette, Part 4-C, dated 22.5.1958).]

is executed from the operation of Part V of the Act, any entries in respect of such books in the catalogue of books kept under Section 18 of the Act, if already made, shall be deleted.

9A.

[Punishments - Any contravention of any of the rules shall be punishable with a fine which may extend to one thousand rupees.]

[Inserted by Notification No. F. 21(3) H/VIII/66, dated 4.7.1974 (Published in Rajasthan Gazette, Part 4-C, dated 22.8.1974, p. 1 86-1 87).]

10.

[Supersession - Any rules, corresponding to and covered by these rules in force in the Abu, Ajmer and Sunel areas are hereby superseded.]

[Added by ibid.]

[Substituted by Notification No. F. 2(ii) 36/Pub/56, dated 24.6.1953 (Published in Rajasthan Gazette, Part 4-B, dated 27.6.1953).]

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